

1.	Nano Banc v. Aspiration Partners, Inc 22-1257513	The Motion for Leave to Amend, filed on 8/12/24 by Plaintiff Nano Banc ("Bank") is GRANTED. The Motion adequately complies with <i>C.R.C. 3.1324</i>, and the Opposition fails to show that the defense will suffer actual prejudice from allowing the amendment at this time. However, Bank's request that its proposed First Amended Complaint "be deemed filed and served as of the date this Motion" is DENIED. Bank is to file its First Amended Complaint within 5 days, and promptly serve same. <i>Counsel for Bank is to give notice of this ruling.</i>
2.	Ramirez v. General Motors, LLC 23-1308079	Before the Court is a motion to compel deposition of Defendant General Motors, LLC's ("Defendant") Person Most Qualified ("PMQ") filed by Plaintiff Deyamin Ramirez ("Plaintiff"). For the reasons set forth below, the motion is GRANTED IN PART and DENIED IN PART. Defendant is correct that a separate statement was required for this motion. (See <i>Cal. Rules of Court, rule 3.1345(a)</i>.) The motion asks the Court to compel Defendant to provide a PMQ for each of 30 stated categories, where Defendant asserted varying objections and responses to each. A separate statement is required for "[a]ny motion involving the content of a discovery request or the responses to such a request," including motions to "compel answers at a deposition." (<i>Cal. Rules of Court, rule 3.1345(a)(4)</i>.) Here, the Court is effectively being asked to consider the objections for each of those categories and rule on them. As a result, the Court finds a separate statement was required for this motion, to the extent it asks the Court to compel a PMQ deposition for the categories still in dispute, i.e., Category Nos. 5, 6, 8, 9, 11-16, 18, 19 and 21-29. Accordingly, the motion as to Category Nos. 5, 6, 8, 9, 11-16, 18, 19 and 21-29 is DENIED. (See <i>Mills v. U.S. Bank</i> (2008) 166 Cal.App.4th 871, 893.) With respect to the remaining categories, given Defendant's representation in its Objections that it would produce a witness as to Category Nos. 1-4, 7, 10, 17, 20 and 30, the motion is thus effectively seeking compliance, rather than a ruling on the objections. The motion is therefore GRANTED to the extent it seeks to compel Defendant to produce a PMQ for Categories 1-4, 7, 10, 17, 20 and 30, subject to any objections that may be made in such deposition as to either the scope, or the specific questions posed. Any disagreements not resolved in that process would then need to be addressed in a further meet and confer, with any remaining disputes

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		to be determined in a future motion submitted with a corresponding separate statement. Counsels are ordered to meet and confer to identify a mutually agreeable date for the PMQ deposition, with said deposition to be conducted within 45 days of the Court's ruling. Plaintiff's evidentiary objections are <i>OVERRULED</i>. <i>Counsel for Plaintiff is ordered to give notice.</i>
3.	Deris v. Toyota Motor Sales, U.S.A., Inc. 23-1335810	The Motion to Compel Further Responses to Plaintiff's Request for Production of Documents, Set One ("RFP") filed by Plaintiff Kazem Deris ("Plaintiff") against Defendant Toyota Motor Sales, U.S.A., Inc. ("Defendant" or "Toyota") is GRANTED IN PART and DENIED in part. Plaintiff seeks to compel further responses a number of requests in Request for Production (Set One). The court finds that meet and confer efforts were sufficient and that good cause exists for some of the documents requested by Plaintiff. Defendant has already produced responses to most of the RFPs at issue, however Plaintiff asserts those responses are not code-compliant. As to Nos 1 and 2, though Plaintiff asserts the responses are not code-compliant as they do not indicate that all documents or things demanded will be included in production, both responses indicate that Defendant "will comply with this request in full" by producing the documents listed. Accordingly, responses are sufficient and the motion is DENIED as to RFP Nos 1 and 2. The parties entered into a stipulated protective order and Defendant produced supplemental documents and responses in July, just as this motion was being filed. As Plaintiff's motion does not address those supplemental responses, it is DENIED as to those requests that have since been supplemented, Nos 28 and 29, 89, 91, 92. The Court finds good cause has been shown for some of what is requested as documents related to Defendant's policy and procedures used to evaluate customer requests for repurchase or replacement under the Song Beverly Act would be relevant to Defendant's good faith compliance with said Act. Further, documents related to Defendant's internal analysis or investigation regarding the defects claimed by Plaintiff in vehicles purchased in California for the same year, make and model of the subject vehicle would also be probative of Defendant's good faith compliance with the Act. In addition, documents regarding diagnostic/repair procedures followed is